

3.	Charles Schwab & Co, Inc. vs. O'Callaghan 25-01536620	Motion - Other (For Order Governing Custody of Interpleaded Accounts) Plaintiff Charles Schwab & Co., Inc. UNOPPOSED motion to interplead funds is granted. The court finds as follows: 1. This is a proper interpleader action, and the Accounts identified in the Verified Complaint are deemed to have been interpleaded, notwithstanding that they remain in the physical custody of Schwab; 2. The Accounts are deemed to be under the jurisdiction of the Court; 3. Until further order of the Court: *Schwab shall maintain custody of the Accounts; *O'Callaghan may continue to effect securities trades within the Accounts in the ordinary course; however, no funds, sale proceeds, securities, or other property shall be withdrawn, transferred out of, or distributed from the Accounts absent a further order of the Court or the written agreement of all claimants; *Schwab may continue to impose and maintain reasonable restrictions necessary to preserve the Accounts and comply with applicable law; *Schwab may charge its usual and customary fees for maintaining the Accounts and may deduct such fees from the Accounts in the ordinary course. Nothing in the order shall be deemed an adjudication of the merits of any party's claims, all of which are expressly reserved. Schwab to give notice of this ruling.
4.	Suarez vs. FCA US LLC 25-01526430	1. Demurrer to Complaint 2. Case Management Conference VACATED

5.	Coronado vs. Sub-zero Excavating, Incorporated 24-01443383	1. Demurrer to Complaint (x2) 2. Case Management Conference <u>Motion No. 1</u> The City of Cypress' Demurrer to the Complaint is SUSTAINED. The City's Request for Judicial Notice is GRANTED as to Exhibit A and DENIED as to Exhibit B. A complaint must contain "a statement of the facts constituting the cause of action, in ordinary and concise language." (Code Civ. Proc., § 425.10.) A plaintiff must plead such facts as are necessary "to acquaint a defendant with the nature, source and extent of his claims." (<i>Doe v. City of Los Angeles</i> (2007) 42 Cal. 4th 531, 550.) Moreover, "claims against public entities [must] be specifically pleaded." (<i>Brenner v. City of El Cajon</i> (2003) 113 Cal.App.4th 434, 439.) First Cause of Action - Negligence A California public entity is not liable for a tortious injury caused by an act or omission of a public entity or public employee or any other person, except as otherwise provided by statute. (Gov. Code, § 815(a).) Here, the Complaint does not identify any statutory authority that supports a claim for negligence against the City. The Complaint merely states "Defendants named failed to turn the power lines off at the site. Defendants failed to provide reasonable warning of the 'Dangerous Condition'". There are no facts indicating why the City is liable, or that the incident even occurred on City property. Accordingly, the demurrer to the first cause of action is SUSTAINED. Second Cause of Action – Premises Liability A public entity is liable "for injury caused by a dangerous condition of its property if the plaintiff establishes that the property was in a dangerous condition at the time of the injury, that the injury was proximately caused by the dangerous condition, that the dangerous condition created a reasonably foreseeable risk of the kind of injury which was incurred, and that either: (a) A negligent or wrongful act or omission of an employee of the public entity within the scope of his employment created the dangerous condition; or (b) The public entity had actual or constructive notice of the dangerous condition under Section 835.2 a sufficient time prior to the injury to have taken
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